



CHAPTER v.

An Act to constitute the Cotton Industry War Memorial Trust and to make provision with respect to its property and funds to incorporate the governing body of the Cotton Industry War Memorial Trust to revoke the deed of trust made by the Cotton Control Board by James Stanley Addison esquire then described as of St. James's Buildings Oxford Street in the city of Manchester a member of the said board and the Board of Trade relating to the Cotton Trade War Memorial Fund and for other purposes. [21st May 1947.]

WHEREAS under and by virtue of a deed of trust (the provisions whereof are set forth in the First Schedule to this Act) made by the Cotton Control Board by James Stanley Addison therein described as of St. James's Buildings Oxford Street in the city of Manchester a member of the said board and the Board of Trade certain funds then in the hands or under the control of the Cotton Control Board and all accretions thereto (if any) on capital account were declared to constitute the Cotton Trade War Memorial Fund:

And whereas the said deed of trust was entered into to give effect to a scheme approved by the Cotton Reconstruction Board by resolution duly passed on the ninth day of February one thousand nine hundred and twenty:

And whereas it was provided by clause 9 of the said deed of trust that it and the provisions therein contained should not take effect until the same should have been approved by an order of the court:

And whereas by an order made on the seventeenth day of January one thousand nine hundred and twenty-one in proceedings in the Chancery Division of the High Court of Justice

the short title and reference to the record whereof is 1920 C. 4084 it was ordered that the said trusts and provisions be approved and carried into effect:

And whereas pursuant to the provisions of the said deed of trust all moneys and investments representing the capital of the said fund were made over to and are now vested in the Official Trustees of Charitable Funds and at present consist of the investments set forth in the Second Schedule to this Act and are held by the Official Trustees of Charitable Funds upon the trusts declared by the said deed of trust:

And whereas some of the purposes for which the said fund may be applied have become owing to lapse of time obsolete or as a result of social legislation capable of being better provided for under other statutory enactments and the income of the said fund has not been fully employed:

And whereas it is expedient to constitute a Cotton Industry War Memorial Trust and that its governing body should be incorporated and have the powers conferred upon them as in this Act provided that the said deed of trust should be revoked and the property held upon the trusts thereof should be transferred to the Cotton Industry War Memorial Trust:

And whereas the purposes of this Act cannot be effected without the authority of Parliament:

May it therefore please Your Majesty that it may be enacted and be it enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows (that is to say):—

Short title.

1. This Act may be cited as the Cotton Industry War Memorial Trust Act 1947.

Interpretation.

2. In this Act unless the context otherwise requires the following expressions shall have the meanings hereby assigned to them respectively (that is to say):—

“ the industry ” shall mean the activities of spinning and doubling as defined by subsection (2) of section 38 of the Cotton Industry (Re-organisation) Act 1939 and weaving as therein defined but including the preparation from continuous filament rayon thread of warp and weft for looms:

2 & 3 Geo. 6.
c. 54.

Provided that the Board of Trade may in their absolute discretion from time to time by order direct that any or any part of the said activities shall be excluded from or any or any part of any other activity or operation in the manufacture of textiles

shall be included in the definition of the industry and may by order revoke vary or alter in any way any such order;

“ beneficiary ” shall mean any person (not being a body corporate) who in the opinion of the Trustees—

(i) is or was employed or carries or carried on business in the industry; or

(ii) is or was a director or officer of or employed by any company or other organisation of employers or operatives wholly or mainly concerned with the industry:

Provided that the Board of Trade may in their absolute discretion from time to time by order direct that any class of person shall be excluded from or any other class or classes of persons engaged in or concerned with the manufacture of textiles shall be included in the definition of beneficiary and may by order revoke vary or alter in any way any such order;

“ the first trustees ” shall mean Thomas Dutton Sir John Howarth Grey Kt. J.P. Frank Longworth J.P. Harry Scott Butterworth J.P. Jeremiah Proctor Andrew Naesmith O.B.E. J.P. Archibald Colin Campbell Robertson J.P. and Albert Knowles J.P.;

“ the Trust ” shall mean the body corporate constituted by this Act under the name of “ the Cotton Industry War Memorial Trust ”;

“ the Cotton Trade War Memorial Fund ” shall mean the fund constituted by the deed of trust;

“ the Trustees ” shall mean the first trustees or the survivors of them and such other persons as shall be appointed under the provisions of this Act to be and shall from time to time hold office as Trustees or members of the Trust and “ Trustee ” shall mean any one of such trustees or persons; and

“ the deed of trust ” shall mean the deed of trust set forth in the First Schedule to this Act.

3. The Trustees are hereby constituted for all purposes a body corporate by the name of “ the Cotton Industry War Memorial Trust ” for such objects and purposes as in this Act appear and by that name shall have perpetual succession and a common seal and may by and in the same name sue and be sued and do all things incidental or appertaining to a body corporate.

4. The affairs and property of the Trust shall be managed and administered by the Trustees.

Incorporation
of Trustees.

Management
and adminis-
tration.

Number of
Trustees &c.

5.—(1) The number of Trustees shall be eight.

(2) The continuing Trustees at any time may act notwithstanding any vacancy in their body.

Retirement
of Trustees.

6. If a Trustee shall be desirous of retiring from the Trust and shall give to the Trust notice in writing of such his desire specifying the date on which his retirement is to take effect then as from the date specified in that behalf in such notice the Trustee shall cease to hold office as a Trustee.

Appointment
of Trustees
&c.

7. The Board of Trade in their absolute discretion shall have power at any time and from time to time (a) to appoint any person to be a Trustee for the purpose of filling a vacancy howsoever arising and (b) to remove any Trustee:

Provided that before making any appointment the Board of Trade shall consult with such persons and bodies representative of the interests of employers carrying on business and operatives employed in the industry as appear to them to be desirable in order to secure just and equitable representation on the Trust of the interest of both employers and employees engaged in the industry:

Provided also that the Board of Trade shall not be obliged to give any reason for either an appointment or removal of any Trustee.

Conduct of
Trustees'
business.

8.—(1) The Trustees shall meet together from time to time for the purpose of exercising their powers and discharging their duties. At any such meeting four Trustees shall constitute a quorum and decisions shall be taken by a simple majority of the Trustees present but if there be an equality of votes the chairman of the meeting shall be entitled to a further or casting vote.

(2) Subject as aforesaid the Trustees with the written consent of the Board of Trade may make such rules or regulations as they think fit with regard to the convening and conduct of their meetings the delegation of their powers and duties to committees or officers and the custody and affixing of the common seal and shall with the like consent be entitled from time to time to amend revoke or add to such rules or regulations.

Revocation
of deed of
trust.

9. The deed of trust is hereby revoked and without prejudice to anything previously done or suffered the powers of the Trustees acting thereunder are hereby terminated and the provisions thereof shall cease to have effect.

Transfer of
property
"trust
fund."

10.—(1) All the property investments and moneys which immediately before the passing of this Act were held upon the trusts declared by the deed of trust shall by virtue of this Act and without any conveyance transfer or other instrument be

transferred to and vested in the Trust and shall as from the date of such passing constitute "the trust fund" which expression shall include the property from time to time representing the property investments and moneys aforesaid and shall also include any property investments and moneys hereafter acquired by the Trust.

(2) The production of a copy of this Act together with a statutory declaration by the Chairman for the time being of the Trustees of the deed of trust and subject as hereinafter provided by any person in whose name any registered land or any stock transferred by virtue of this Act is standing describing for the purpose of identification the land or stock transferred shall be sufficient authority to the Chief Land Registrar of His Majesty's Land Registry to enter the name of the Trust as proprietor of the said land or to any company in whose books any such stock is standing to transfer the stock into the name of the Trust and to pay any dividend interest or bonuses thereon to the Trust:

Provided that any stock standing in the name of the Official Trustees of Charitable Funds transferred by virtue of this Act shall be identified by a statement signed on behalf of such Trustees in the manner prescribed by the regulations made by the Treasury under section 4 of the Charitable Trusts Act 1887 and dated the twenty-fifth day of May one thousand nine hundred and thirty-six and the production of a copy of this Act together with such statement shall be sufficient authority to the Bank of England on whose registers any such stock is standing to transfer the stock into the name of the Trust and to pay any dividend interest or bonus thereon to the Trust.

50 & 51 Vict.
c. 49.

(3) In this section—

"company" includes the Bank of England and any corporation or person keeping books in which any stock is registered or inscribed;

"stock" includes any share bond fund annuity or other security.

11. The Trust shall hold the trust fund upon the following trusts (namely):—

Trusts of
trust fund.

(1) To invest the same in or upon any investment which may for the time being be authorised by law for the investment of trust funds with power from time to time and at any time to vary any such investment: and

(2) To apply the capital and income thereof for the purposes hereinafter enacted.

Beneficial
trusts.

12. The Trustees shall at their discretion apply the income of the trust fund and with the consent of the Board of Trade the capital thereof after payment of the expenses of administration and management for such of the following purposes as they may from time to time think fit (namely):—

(1) In the rendering of pecuniary assistance by way of making grants pensions or other payments continuous or discontinuous on such terms and subject to such conditions as they may think fit to or for the benefit of individuals who in the opinion of the Trustees are in necessitous circumstances and fall under one or more of the following categories (namely):—

(a) beneficiaries who may be either permanently or temporarily disabled by wounds disease or sickness contracted or occasioned in or by reason of service in the Armed Forces of the Crown or in the Merchant Navy or in Civil Defence or who may be so disabled by accidents occurring in the course of such service or who may be so disabled as a result of enemy action during a war or who may be so disabled by accidents or disease occurring in the course of their employment in the industry or whose employment in the industry has been long and meritorious;

(b) relatives or dependants of beneficiaries who qualify for assistance under sub-paragraph (a) of this paragraph or relatives or dependants of beneficiaries who may die by reason of such wounds disease sickness or accidents:

(2) In or towards endowing purchasing equipping maintaining building extending or rebuilding a rest or convalescent home or homes for beneficiaries or such class or classes thereof as the Trustees may from time to time decide or any other buildings or land which in the opinion of the Trustees can be used for the assistance or welfare of beneficiaries and so that the Trustees in carrying out any such object may (a) join or co-operate with any organisation or may hand over funds for any such object to any organisation appearing to them capable of carrying out such object whether or not such organisation is restricted solely to beneficiaries and (b) make such charges for maintenance at and other services rendered by any such home as in their discretion they think fit:

(3) In providing for or assisting in such education as appears to the Trustees to be calculated to encourage

recruitment into or efficiency in the industry and so that such provision or assistance may be afforded either to individuals or by means of a general scheme or general schemes of education for the benefit collectively of a class of persons:

- (4) In making grants or subscriptions for the furtherance of objects which fall under one or other of the following headings and are beneficial to the inhabitants of the United Kingdom (namely):—

(a) scientific medical surgical or educational research in connection with the industry;

(b) the development of British-Commonwealth production of raw material for the industry;

(c) the investigation of the conditions and the compilation of statistics affecting the textile trade or industry at home or abroad whether as regards labour production manufacture or otherwise:

- (5) In contributing funds to any institution to provide or which in the opinion of the Trustees provides (a) special facilities for medical or surgical treatment to persons engaged in the industry or (b) special medical or surgical treatment for diseases or illnesses occurring in the carrying on of the industry:

- (6) In contributing funds for purposes which in the opinion of the Trustees are cognate to or allied or associated with those hereinbefore specified:

Provided that subject as hereinbefore enacted the discretion of the Trustees shall be absolute and without prejudice thereto their determination as to whether or not any person is a beneficiary or a dependant or relative of a beneficiary or as to whether or not any payment or benefit should be made or granted to any person or body or as to the nature or amount or manner of payment of any money or benefit or as to the particular purposes for which the capital or income of the trust fund should be applied and in what proportion shall be final and binding on all persons and bodies howsoever interested or claiming to be interested and not subject to any appeal:

Provided also that the Trustees shall not be obliged to deal with the application of any moneys which they may allocate to any particular purpose but shall be at liberty to pay over such moneys to any trade union or other organisation approved by the Board of Trade for this purpose and after such payment has been made the Trustees shall not be responsible for the actual application of the moneys so paid:

Provided further that the Trustees shall not be obliged to apply the whole of the annual income of the Trust in the year

in which it accrues for the purposes hereinbefore enacted but may in their absolute discretion retain and accumulate any part thereof and invest the same:

Provided further that (a) any investment made out of the unapplied income of any year or the accumulations of such unapplied income and (b) bonuses or profits arising out of the conversion or sale of any investment of the Trust may be applied by the Trustees for any of the purposes aforesaid and the consent of the Board of Trade shall not be required to such application.

Power to pay
charges and
expenses.

13. The Trust may pay all charges and expenses incurred in the execution of the trusts hereinbefore enacted including the remuneration of any officer or servant or agent out of the trust fund and may also thereout pay pensions or make grants to or for the benefit of retired sick or disabled officers or servants or the widows or dependants of deceased officers or servants of the Trust.

Power to
promote
companies.

19 & 20 Geo. 5.
c. 23.

14. The Trust may from time to time promote and finance any limited company under the Companies Act 1929 or any Act or Acts replacing or amending the same for the purpose of carrying into effect any of the purposes hereinbefore enacted.

Power to
hold and
acquire lands.

15. The Trust may purchase or acquire or take on lease or accept a gift of and may hold without licence in mortmain any land which in the opinion of the Trustees it is desirable that they should acquire or hold. Provided that the Trust shall not purchase land unless the land is required for actual occupation immediate or future for the purpose of the Trust and not as an investment.

Power to
receive
donations &c.

16. The Trust may receive any donation bequest devise endowment or gift of any property for the purposes of the Trust and also for any special purpose which can in the opinion of the Trustees be conveniently advantageously or desirably furthered in connection with the purposes of the Trust and may organise or support in any manner which the Trustees deem fit any activity for procuring such donations bequests devises endowments or property.

Power to sell
mortgage &c.
lands &c.

17.—(1) The Trust may from time to time sell mortgage charge let surrender exchange or otherwise dispose of the land or any personal estate and property (including moneys secured on mortgage of or charge upon any land) or any part thereof by this Act vested in the Trust or which shall hereafter be vested in the Trust or any rights or privileges to be exercised in over upon or under the same or any part thereof and may do or execute all such acts deeds matters and things as may be necessary for effectuating and completing any such sale mortgage charge letting surrender exchange or disposition.

(2) Nothing in this section shall prejudice or jurisdiction of the High Court or of the Charities Commissioners over the Trust and its endowments.

18. So long as the making of an issue of capital for the United Kingdom without the consent of the Treasury is prohibited by regulations made under the Emergency (Defence) Act 1939 or under that Act as extended by subsequent enactments including the Supplies and (Transitional Powers) Act 1945 or so long as the borrowing of money in Great Britain without the consent of the Treasury is prohibited by an order made under section 1 of the Emergency (Control and Guarantees) Act 1946 it shall not be lawful for the Trust to exercise the powers of borrowing conferred by the Act without such consent.

19. Notwithstanding anything contained in the Mortgages and Charitable Uses Act 1891 the Trust may retain any investment or other property real or personal held by it or which it may receive in any of the circumstances specified in section 16 (Power to receive donations &c.) of this Act though the property being investments or property authorised to be acquired under this Act or may disclaim any such investment or property and may accept retain or refuse any new shares stock debentures or debenture stock in any company body or organisation which may be offered to the Trust in respect of any investment retained as aforesaid.

20. Any devise bequest or gift contained in the will or any codicil to the will of any person dying before or after the passing of this Act in favour of the Cotton Trade War Memorial Fund or directed to be administered under or in connection with the deed of trust shall not fail by reason of anything in this Act but shall as from the passing of this Act take effect in favour of or be administered by or in connection with the Trust.

21. In any case where by the will or a codicil to the will of any person having died before or after the passing of this Act any bequest or gift has been or shall be made in favour of the Cotton Trade War Memorial Fund or directed to be administered under or in connection with the deed of trust and the legal personal representatives of such person or any trustees in whom such bequest or gift is vested are unable for any reason to obtain the receipt for such bequest or gift of any person whose receipt is a valid discharge for the same the receipt of the secretary of the Trust shall be a valid discharge to such legal personal representatives or trustees as aforesaid (as the case may be) and shall exonerate them from being concerned to see to the application of such bequest or gift and from being answerable for the misapplication or non-application thereof.

*Cotton Industry War
Memorial Trust Act, 1947.*

10 & 11 GEO. 6.

Transfer of liabilities
Upon the passing of this Act all debts liabilities contracts obligations properly incurred or entered into by or on behalf of the trustees of the Cotton Trade War Memorial Fund by virtue of this Act be transferred and attached to the Trust and shall thereafter be discharged and satisfied by the Trust. The Trust shall indemnify the trustees and officers of the Cotton Trade War Memorial Fund and their respective representatives from all such debts liabilities and obligations from all expenses and costs in respect thereof.

Proof of rules and regulations
23. A printed copy of any rules or regulations purporting to be certified by the secretary of the Trust to be rules or regulations of the Trust for the time being in force shall be admissible in all proceedings as prima facie evidence thereof without further proof.

Accounts to be furnished to Board of Trade
24. The Trustees shall within three months after the close of their financial half-year or such longer period as the Board of Trade may allow furnish to the Board a copy of the accounts of the Trust for such half-year.

Costs of
25. All costs charges and expenses preliminary to and of and incidental to the preparing for obtaining and passing of this Act or otherwise in relation thereto shall be paid by the Trust out of the trust fund.

The SCHEDULES referred to in the foregoing Act.

THE FIRST SCHEDULE.

TRUST DEED.

TO ALL TO WHOM THESE PRESENTS SHALL COME THE COTTON CONTROL BOARD by JAMES STANLEY ADDISON of St. James's Buildings Oxford Street in the city of Manchester a member of the said board and the Board of Trade send greeting:

Whereas during the late war between England and her Allies on the one hand and Germany and her Allies on the other divers restrictions were placed upon the cotton trade or industry the result of which was from time to time to throw operatives in the said trade or industry out of employment:

And whereas various levies were from time to time duly made by the Cotton Control Board upon persons engaged in the said trade or industry for the purpose of providing funds which should be applicable for charitable purposes including in particular the relief of operatives who were thrown out of employment as aforesaid:

And whereas the immediate purposes for which the said levies were made have now been answered and there is in the hands or under the control of the Cotton Control Board a balance in respect of such levies amounting to £1,750,000 or thereabouts:

And whereas it is apprehended that the said balance may properly be applied in such manner as is hereinafter provided to such charitable purposes as are hereinafter expressed:

And whereas in May 1918 the Board of Trade proposed that the Cotton Control Board strengthened by the addition of certain members should serve as a reconstruction committee to advise the Ministry of Labour the Ministry of National Service and the Board of Trade on reconstruction matters affecting the cotton trade and the Cotton Control Board concurred in the proposal for additional members being appointed for these special purposes In view of its changed functions with the approval of the Board of Trade its title was in February 1919 altered to the Cotton Reconstruction Board:

And whereas these presents are entered into to give effect to a scheme approved by the Cotton Reconstruction Board by resolution duly passed on the 9th day of February 1920:

Now these presents witness and it is hereby agreed as follows that is to say:—

1. The aforesaid balance so in the hands or under the control of the Cotton Control Board and all accretions thereto (if any) on capital account shall be known as "the Cotton Trade War Memorial Fund" and is hereinafter referred to as "the fund."

1ST SCH.
cont.

2. All moneys or investments representing capital of the fund shall be made over to the Official Trustees of Charitable Funds who shall—

- (i) invest any such moneys from time to time in their hands in respect of the fund in or upon any investments which may for the time being be authorised by law for the investment of charitable funds;
- (ii) pay the income of the fund to the Trustees of the fund hereinafter mentioned;
- (iii) from time to time under directions in that behalf by the Charity Commissioners for England and Wales (hereinafter called the Charity Commissioners) make over to the Trustees of the fund such capital moneys of the fund (to be raised if necessary by sale of investments) as such last-mentioned Trustees may from time to time with the consent of the Board of Trade require to be made over to them.

3. The fund (subject as hereinbefore provided) and the income thereof shall be administered and managed by a body of eight persons (hereinafter referred to as "the Trustees") to be appointed on the first appointment of Trustees and thereafter from time to time as and when vacancies occur by the President of the Board of Trade who shall have power from time to time to remove a Trustee. The Board may on the application of any Trustee who is temporarily unable to act appoint any person to act as trustee in his place for a certain period not exceeding six months and any person so appointed shall during the period of appointment be a Trustee for all purposes of these presents.

4.—(1) No person shall be entitled to act as Trustee whether on a first or any subsequent appointment until he shall have signed a declaration in the minute book of the Trustees to the effect that he accepts the office of Trustee and is willing to act in the trusts hereof.

(2) The Trustees not being less in number than a quorum may act notwithstanding a vacancy or vacancies in their number.

(3) There shall be a quorum when four Trustees are present at any meeting.

(4) The Trustees shall hold general meetings (to be known as ordinary meetings) at least four times in each year at such times and in such places as they shall from time to time appoint.

(5) The chairman or any two Trustees may at any time summon a special meeting for any cause which seems to him or them to be sufficient.

(6) Notice in writing of every meeting whether ordinary special or adjourned shall be delivered or sent through the post to each Trustee by the clerk or some other person acting under the directions of the Trustees or in the case of a special meeting by or under the direction of the person or persons summoning the meeting four clear days at least before the date of the meeting and every notice of meeting shall state the place day and hour of the meeting and every notice of a special meeting shall further state the matters to be discussed thereat. Provided always that the first meeting shall be summoned by the Board of Trade and shall be deemed to be the first ordinary meeting in the year in which it is held.

(7) The Trustees shall at their first ordinary meeting in every year elect one of their number to be chairman of their meetings for the current year (by which expression is meant the period between the first ordinary meeting in the first-mentioned year and the first ordinary meeting in the next ensuing year) and they shall make regulations for filling his place in case of his death resignation or absence. Provided always that the chairman who has been elected such in any year shall be eligible for re-appointment in the next and any subsequent year.

(8) Every matter shall be determined by the majority of the Trustees present and voting on a question. Provided always that in case of equality of votes the chairman of the meeting shall have a casting vote whether or not he shall have previously voted on the same question but no Trustees shall in any circumstances give more than one vote.

(9) Any resolution of the Trustees may be rescinded or varied from time to time by the Trustees at a special meeting and a resolution in writing signed by all the Trustees shall be valid and effectual as if it had been passed at a meeting of the Trustees duly called and constituted.

(10) The Trustees shall appoint one of themselves or some other fit person to be their clerk and may also appoint any other necessary or proper officers or agents for their assistance in the administration and management of the fund. And the Trustees may pay to their clerk not being a Trustee and to their other officers and agents not being Trustees such annual salaries or other remuneration as the Trustees may from time to time with the consent of the Board of Trade determine.

(11) A minute or minute books shall be provided and kept by the Trustees and minutes of all proceedings of the Trustees shall be entered in the appropriate minute book and shall be signed by the chairman at the meeting either at the conclusion thereof or at some future meeting if such minutes shall have been duly confirmed.

(12) Full accounts shall be entered in proper books of account to be provided for the purpose of all moneys received and paid respectively on account of the capital or income of the fund and such books of account shall be made up for each year and examined and passed by the Trustees at their first ordinary meeting in the ensuing year or at some other meeting appointed by them for the purpose and shall be thereupon signed by the chairman of the meeting.

(13) Proper accounts in relation to the fund and the income thereof shall in each half-year be made out and certified and copies thereof shall be transmitted to the Charity Commissioners the Cotton Reconstruction Board (or other duly constituted authority which may from time to time take its place) and the Board of Trade respectively.

(14) A banking account or banking accounts for the purposes of the fund shall be opened and kept with some fit bankers to be from time to time selected by the Trustees and all cheques and orders for payment of money shall be signed by two or more of the Trustees and countersigned by the clerk.

1ST SCH.
—cont.

(15) The expenses of the administration and management of the fund and the income thereof shall be paid out of the income of the fund.

(16) The appropriation of the benefits hereunder shall be made by the Trustees from time to time in the exercise of their discretion at meetings of their body.

(17) Within the limits hereby prescribed the Trustees shall have full power from time to time to make vary and repeal regulations (not being inconsistent with the provisions herein contained) for the conduct of the business of the Trustees or otherwise for the administration and management of the fund and the income thereof and such regulations shall be binding on all persons affected thereby.

(18) No Trustees shall take or hold any interest in the fund or the income thereof otherwise than as a Trustee and no Trustee shall receive any salary or remuneration from the fund or the income thereof.

5. The Trustees shall subject as hereinafter provided cause the income of the fund after payment of the expenses of administration and management and also any capital moneys of the fund which may be made over to them under clause 2 (iii) hereof to be applied in all or some of the following modes of application (that is to say):—

(i) In rendering pecuniary assistance by way of money grants pensions or other payments continuous or discontinuous to or for the benefit of necessitous persons who may fall under one or more of the following categories (namely):—

(a) operatives or former operatives in the cotton trade or industry who have been either permanently or temporarily disabled by wounds disease or sickness contracted or occasioned in or by reason of the said war or who have been so disabled by accidents occurring in the course of their service during the said war or who have been or may be so disabled by accidents occurring in the course of their employment in the said trade or industry or whose employment in the said trade or industry has been long and meritorious;

(b) relatives or dependants of operatives or former operatives in the cotton trade or industry who have been killed in action during the said war or have died from wounds disease or sickness contracted or occasioned in or by reason of the said war or have been fatally injured by accidents occurring in the course of their service during the said war or in the course of their employment in the said trade or industry;

(ii) In providing for or assisting in the education of operatives or former operatives in the cotton trade or industry and/or their children or other relatives and so that such provision or assistance may be afforded either to individual beneficiaries or by means of a general scheme or general schemes of education for the benefit collectively of such persons as aforesaid or any class of them;

(iii) In making grants or subscriptions for the furtherance of objects which fall under one or other of the following headings and are beneficial to the community at large (namely):—

1ST SCH.
—cont.

(1) Scientific or educational research in connection with the cotton trade or industry;

(2) The development of Empire-grown cotton;

(3) The investigation of the conditions affecting the textile trade or industry in foreign countries whether as regards labour production manufacture or otherwise;

(4) The provision of funds for the purposes of any scheme which may be formulated or adopted by the Cotton Reconstruction Board (or any other duly constituted authority which may from time to time take its place) and sanctioned by the Board of Trade dealing with unemployment in the cotton trade or industry notwithstanding that such scheme may not fall within the provisions of the Unemployment Insurance Act 1920 or any amending statute Provided always that no portion of the fund or the income thereof shall at any time be applied in aid of any rates for the relief of the poor or for other local purposes.

6. The Trustees in carrying out the provisions of the preceding clause shall not be required themselves to deal with the application of any moneys (hereinafter referred to as "allocated moneys") which they may allocate to any particular purpose object or mode of application but shall be at liberty for the purpose of actual application to pay over any allocated moneys to a trade union (or other organisation) approved of by the Board of Trade for this purpose and after such payment has been made the Trustees shall not be responsible for the actual application of the moneys so paid.

7. The Cotton Reconstruction Board or any other duly constituted authority which may from time to time take the place of such board may at any time submit to the Trustees proposals for the allocation of any moneys in the hands of the Trustees and before allocating such moneys the Trustees shall take such proposals (if any) into consideration and without prejudice to their discretion under paragraph 16 of clause 4 of these presents and also without prejudice to any consent or approval by the Board of Trade required by these presents shall give effect to such proposals unless they see good reason to the contrary.

8. If any doubt or question shall arise amongst the Trustees as to the construction or application of any of the provisions herein contained or the legality or validity or proceeding of any Act or thing had or done or about to be had or done hereunder or otherwise as to the administration or management of the fund or the income thereof the Trustees may apply to the Charity Commissioners for their opinion thereon which when given shall be binding on the Trustees and on all persons claiming hereunder who shall be affected by the question so decided.

9. These presents and the provisions herein contained shall not take effect until the same shall have been approved by an order of the court.

SECOND SCHEDULE.

LIST OF INVESTMENTS.

£768,970	15	3	3 per cent. Savings Bonds 1955-65.
£15,000	0	0	3 per cent. Savings Bonds 1960-70.
£7,000	0	0	3 per cent. Savings Bonds 1965-75

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